Mr. Wilson hoped the alteration would by no means be made. To pretend to *define* the law of nations which depended on the authority of all the Civilized Nations of the World, would have a look of arrogance. that would make us ridiculous.

Mr. Govr The word *define* is proper when applied to *offences* in this case; the law of ⟨nations⟩ being often too vague and deficient to be a rule.

On the question to strike out the word "punish" ⟨it passed in the affirmative⟩

N— H. ay. Mas— no. Ct. ay. N— J. ay. Pa. no. Del. ay Md. no. Va. no. N. C— ay— S— C— ay. Geo— no. [Ayes — 6; noes — 5.]

Docr. Franklin moved * to add after the words "post roads" Art ⟨I⟩ Sect. 8. "a power to provide for cutting canals where deemed necessary"[9]

Mr Wilson 2ded. the motion

Mr Sherman objected. The expence in such cases will fall on the U-- States, and the benefit accrue to the places where the canals may be cut.

Mr Wilson. Instead of being an expence to the U. S. they may be made a source of revenue.

Mr. Madison suggested an enlargement of the motion into a power "to grant charters of incorporation where the interest of the U. S. might require & the legislative provisions of individual States may be incompetent". His primary object was however to secure an easy communication between the States which the free intercourse now to be opened, seemed to call for— The political obstacles being removed, a removal of the natural ones as far as possible ought to follow. Mr. Randolph 2ded. the proposition.

Mr King thought the power unnecessary.

Mr Wilson. It is necessary to prevent *a State* from obstructing the *general* welfare.

*⟨This motion by Dr. Franklin not stated in the printed Journal, as are some other motions.⟩

[9] Upon this discussion, see Appendix A, CCLVII-CCLX, CCLXXVIII, CCCL, CCCLIII, CCCLXXIV.